



KPMG Assurance and Consulting Services LLP
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Strictly Private and Confidential

The Director
Brookfield Private Capital (DIFC) Limited
11A, Al Mustaqbal Street,
Financial Centre, Dubai, UAE

18 February 2026

**Engagement Letter for Environmental and Social Due Diligence for Three (3) Sites of Project Pinnacle
(under Brookfield Private Capital (DIFC) Limited)**

Dear Sir,

1. I am writing to confirm the terms of the engagement by Brookfield Private Capital (DIFC) Limited ("Brookfield" or "you" or "Company" or "Client") of KPMG Assurance and Consulting Services LLP ("KPMG" or "we" or "our") to deliver Environmental and Social Due Diligence (E&S DD) for 3 sites, located in India and in Oman.
2. This letter ("Engagement Letter" / "EL") overrides all prior communications exchanged between us on this account. All changes to this EL shall have to be mutually agreed in writing between us.
3. **Background**
 - 3.1. Brookfield Private Capital (DIFC) Limited is exploring opportunity to invest / acquire 3 sites located in India and Oman. These are ammonia process plants, green hydrogen plant and renewable energy plants ("solar Site") and are at different stages of development. The Client wishes to conduct Environmental and Social Due Diligence (E&S DD) based on the following frameworks:
 - International Finance Corporation (IFC) Performance Standards (PS);
 - Sustainability Accounting Standard Board (SASB);
 - Equator Principles (EP 4), Energy 2020 and ILO conventions on labour standards;
 - IFC/ WB General EHS Guidelines and sector specific guidelines for Electric Power Transmission and Distribution;
 - ADB Safeguard Policy Statement 2009;
 - OECD Due Diligence Guidance for Responsible Business Conduct;
 - Applicable local, national and state level (E&S) laws, regulations and standards; and
 - Good International Industry Practice Guidance, such as Stakeholder Engagement: A Good Practice Handbook for Companies doing Business in Emerging Market (IFC), Addressing Grievance from Project Affected Communities (IFC).
4. **Services.** We have discussed and agreed with you the services (the "Services") which we will provide to you in accordance with the terms of this EL.

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4.1. Scope of Work

Impact & Risk Assessment

- Evaluate environmental and social risks and impacts of the project.
- Documentation Review & Site Visit

Analyze project EHS, regulatory and social compliance documents

- Conduct site visits and stakeholder consultations.

Compliance Review

- Assess project alignment with applicable reference frameworks and industry best practices.

ESIA & ESMP Evaluation

- Review Environmental and Social Impact Assessment (ESIA) Study, Critical Habitat Assessment (CHA) study and E&S Management Plans (ESMPs) of the organization.

Health & Safety

Assessment of Risks & Opportunities at the sites in accordance with Company's HSSE Management System:

- i. Assess how company approaches and governs HSS&E in its operations including governance structures, management commitment and leadership, safety culture, adequacy of resources, policies, and training practices.
- ii. Review management of the sites' HSS&E program, including rules & work procedures (high-risk Lock-out, Tag-out (LOTO), working at heights, confined spaces or in proximity to energized equipment, craning & hoisting, operating heavy equipment, etc.), emergency preparedness, job safety planning, public safety, security and contractor HSS&E management.
- iii. Review HSS&E performance for the past 5 years, including high-risk incidents, high-risk unsafe conditions and near misses. Include a review and comments on one or more high risk incident investigations and reports completed on such an incident(s).
- iv. Review HSS&E performance and indicators for the last five years and provide comments, benchmarked against industry averages such as HSIF/ PSIF rate, Lost-Time Injury Rate (LTIR) and/or Industrial Safety Accident Rate (ISAR) where applicable.
- v. Assess regulatory compliance status to identify instances of non-compliance with existing and reasonably foreseeable applicable legislation which could be material in the context of the transaction. Identify any litigation or ongoing liabilities related to HSS&E matters.
- vi. Identify and assess material HSS&E risks and liabilities, including but not limited to labor practices, contractor management, and workforce health and safety.

Gap Analysis

- Identify gaps between current practices and reference frameworks.

Organizational Capacity Assessment

- Evaluate the project's capacity and structure to manage E&S issues.
- Evaluate company's practices against the EU Taxonomy (Sustainable Finance Disclosure Regulations), Do No Significant Harm (Principle Adverse Impacts) as well as requirements set by the Brookfield Renewables.

Environmental & Social Action Plan (ESAP)

- Review the adequacy and feasibility of the ESAP, including timelines and monitoring systems.

Licenses & Permits Review

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- Verify completeness and compliance of environmental and labor permits with legal counsel appointed by Client.

Land Acquisition Review

- Assess land procurement and compensation processes, especially under IFC PS5.

Biodiversity Impact Review

- Evaluate biodiversity risks in line with Indian regulations and international standards.

Media & Reputation Risk Review

- Review media sources for potential E&S concerns or NGO objections.
- Perform a controversy review of target, related companies and senior management, including adverse news, legal, regulatory and compliance matters.

Climate Risk Assessment

- Climate change related Risk Management procedures in line with Task Force on Climate-related Financial Disclosures (TCFD) guidelines.

4.2. Scope Limitations. The following matters shall be outside the scope of the Services:-

- a) The current scope of work does not include any design or engineering support, development of technical specifications or bill of quantities or cost estimates for any of the identified recommendations. These services, if required, would be subject to execution of a separate letter of engagement between the parties.
- b) The current scope of work does not include any submissions to or meetings with any of the regulatory agencies or any other third parties.
- c) It should be noted that KPMG will not undertake any kind of primary monitoring, sampling or laboratory analysis, measurements, technical design work or preparation of drawings or provision of any equipment in course of this assignment.
- d) All output and documents will be provided to the Client in electronic format. Hard copies of documents will not be produced by KPMG.
- e) It should be noted that KPMG does not, in any express or implied way, guarantee or assure the outcome of this approach, and that all professional and technical advisory support under this EL (as per the specified scope) will be provided on a 'reasonable effort' basis. In addition, this effort will rely critically on participation, engagement and data provided by the Client.

4.3 Scope Exclusion

- a. We do not render legal services and, therefore, none of the services rendered under this EL or any part thereof shall be deemed to be legal services. In respect of all legal issues, you may consult your legal advisors and act in accordance with their advice.
- b. We will not, pursuant to this letter, perform any management functions for you nor make any decisions relating to the services provided by us in terms of this letter. You are responsible for making management decisions, including accepting responsibility for the results of our services. Additionally, your management is responsible for designating a management-level individual or individuals responsible for overseeing the services provided, evaluating the adequacy of the services provided, evaluating any findings or recommendations and monitoring ongoing activities.

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5. Client Responsibilities

- 5.1. Deploy a single point contact at its senior / middle management to coordinate with us throughout the project duration. It is assumed that the Company shall engage dedicated Site level representative and leadership for this assignment. Active involvement from management and senior management representatives from the Client's side will be required to provide the necessary impetus to scope of work above and to effectively communicate the significance of the same to key stakeholders.
- 5.2. Providing us with access to data/information and people in a timely manner.
- 5.3. Ensuring the availability of the concerned individuals, access to the necessary documentation and records, the quality of information held by them and the extent of co-operation in relation to providing information and documentation. In case we encounter difficulties in getting information/documentation or any other situation, which may lead to a delay in the completion of the assignment, we will inform you immediately.

6. Our Deliverable

- 6.1. We will provide you with the following deliverable which will be subject to our 'General Terms of Business' attached herewith: -

A structured report covering:

- Project categorization under Equator Principles IV;
- Compliance with the above-mentioned reference frameworks and standards;
- Adequacy of mitigation measures; and
- Recommendations for unresolved issues, Environmental and Social Action Plan.

- 6.2. Prior to the issue of final deliverable, we will provide you with the draft-deliverable(s) to allow for discussions and agreement.

7. Our Engagement Team

- 7.1. Our Engagement-team will comprise of the following:-

- a) **Shivananda Shetty (Partner)** - will be the Engagement Leader
b) **Anupam Bhattacharyya, Associate Director** - will manage the engagement on a day-to-day basis

We may involve other team-members as may be required for this engagement. These team-members may belong to our associated entities. However, we will remain responsible for all the work performed by them.

- 7.2. You are requested to constitute a Project-team of your staff-members. This Project-team will be our point-of-contact for all our communications for executing this engagement.

8. Our Charges

- 8.1. Our professional-fee for the services at Paragraph-4 above will be INR 24,00,000.00 (*Twenty-Four Lakhs Only*). This professional-fee will be payable by you to us as per the following schedule:-

- 50 % after signing of the Engagement Letter; and
- 50 % on submission of our final report or 30 days from the date of the draft report, whichever is earlier.

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- Notwithstanding anything above in this clause, the professional-fee is payable by the Client within 30 days from the receipt of a valid tax invoice.

8.2. Following expenses and charges will also be payable by you:-

- a) Any Out-of-Pocket Expenses (OPE) under this Agreement shall be at actuals, supported by documentation and pre-approved by Client in writing.
- b) Administrative-expenses viz. printing/ telephone/ courier/ stationery/ photocopy etc. @ three (3) percent of the total professional-fee.
- c) All charges viz. the taxes, duty, cess and all other levies as instituted by the statute that become applicable to any of the services provided under this engagement. Our fees are exclusive of applicable taxes that will be payable at actuals. While making payment of our invoices, you shall deduct tax at source (TDS) only at the rate prescribed by the Government of India. If tax is deducted at a higher rate, you shall be liable to pay the excess amount deducted to us as we will not be able to adjust / recover such excess amount.

8.3. In order to comply with the requirement of Foreign Exchange Management (Export of Goods & Services) Regulations, 2015 read with Indian indirect tax law (Section 2(6) of IGST Act 2017 read with Rule 96A of CGST Rules 2017) and other statutory compliances, we would request you to make the payment of our invoice in convertible foreign exchange within nine months from the date of the invoice. Otherwise, in case of any delay in payment beyond one year or non-payment of the invoice, Client shall be obliged to pay GST @ 18% on the invoice value along with applicable interest.

8.4. If unforeseen circumstances arise that warrant additional expenses that cause us to be unable to deliver our services within the fees stated above, then we will notify you of such circumstances.

8.5. This EL will be valid up to 30th May 2026. This is a provisional timeline which may be revised by us on the basis of the progress made on the engagement.

9. Other terms and conditions governing our relationship

9.1. We accept this engagement on the basis that our 'General Terms of Business', as set out in Appendix-I will apply to this work and govern our relationship with you. This letter is the "Engagement Letter" mentioned in our General Terms of Business. The General Terms of Business are subject to following changes:

A. Clause 7.5 shall be amended to read as follows:

"Except as required by law or as set forth in this paragraph, neither Party shall acquire any right hereunder to use the name or logo of the other Party or any part thereof, without the express written consent of the other Party."

B. Clause 12.2 shall be amended as following:

"This Agreement may not be assigned or transferred or sub-contracted by any Party without the express prior written consent of the other Party hereto. Any actual, attempted, or purported assignment or transferring or subcontracting by a Party of any of its rights, obligations, or interests in, under or pursuant to this Agreement that does not comply with the terms of this clause shall be null, void, and of no force or effect."

C. Clause 12.3 shall be amended as following:

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"We may appoint sub-contractors to assist in delivering the Services, but we remain responsible for performing the Services and we shall procure that they treat your Confidential Information under confidentiality obligations equivalent to those in this Agreement. Where any sub-contractor is not a KPMG Person, we will notify you first, and KPMG shall ensure that the sub-contractors abide by the code of conduct and policies that are applicable to KPMG under this Agreement."

D. New clause 15.4 shall be added as following:

"In the event that the Client has at any time during the term of this Agreement reasonable cause to believe that KPMG, its affiliates or a sub-contractor (if any) is (i) in breach of any of the provisions of the Clause 18, or (ii) in material breach of this Agreement, the Client may unilaterally suspend performance of or terminate this Agreement with immediate effect by the service of written notice on KPMG and immediately suspend or cancel any further payments"

E. New clause 16.7 shall be added as following:

"Notwithstanding anything contained in this Agreement, KPMG shall ensure strict compliance with the applicable data protection laws, confidentiality and protection of all information and data shared under this Agreement and shall use such data solely for the purposes expressly permitted herein. KPMG shall implement and maintain robust safeguards to prevent any unauthorized access, use, disclosure, alteration, or loss of the data and shall not disclose or transfer it to any third party without prior written consent unless permitted by this Agreement. Any violation of this clause shall constitute a material breach of the Agreement"

F. New clause 18.3 shall be added as following:

"KPMG warrants and undertakes to the Client that:

a) it has not offered, promised, given or agreed to give and shall not during the term of this Agreement offer, promise, give or agree to give to any person any bribe on behalf of the Client or otherwise with the object of obtaining a business advantage for the Client or otherwise;

b) it will not engage in any activity or practice which would constitute an offence under any applicable anti-bribery and corruption laws, including but not limited to the United Arab Emirates, the United States Foreign Corrupt Practices Act of 1977, the United Kingdom's Bribery Act 2010 and Canada's Corruption of Public Officials Act, and that it shall not cause the Client to be in breach of any of the applicable anti-bribery and corruption laws;

c) it has and during the term of this Agreement will maintain in place its own policies and procedures to ensure compliance with any applicable anti-bribery and corruption laws;

d) it will ensure that any person who performs or has performed services for or on its behalf ("Associated Persons") in connection with this Agreement complies with this clause;

e) it will not enter into any agreement with any Associated Person in connection with this Agreement, unless such agreement contains confidentiality undertakings on the same terms as contained in this clause;

f) it has and will maintain in place effective accounting procedures and internal controls necessary to record all expenditures in connection with this Agreement;

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g) from time to time during the term of this Agreement, at the reasonable request of the Client, it will confirm in writing that it has complied with its undertakings under this clause and will provide any information reasonably requested by the Client to demonstrate such compliance;

h) it will promptly report to the Client or to the Client's Reporting Hotline (1-800-665-0831 or www.brookfield.ethicspoint.com) any request or demand for any improper payments or other improper advantage of any kind received by it, its affiliates or sub-contractors (if any) from the Client, any government official, or any other person in connection with the performance of this Agreement; and

i) it will notify the Client as soon as practicable of any breach of any of the undertakings contained in this section of which it becomes aware.

G. New clause 18.4 shall be added as following:

"The Parties must comply with all applicable local laws, regulations, codes and sanctions (as notified by Government of India) including but not limited to tax evasion and data protection. KPMG shall in connection with its performance of the Services under the Agreement, and to the extent applicable to KPMG, comply with the following policies of the Client (collectively, the "Policies"):

- Code of Business Conduct and Ethics attached as Appendix II to the Engagement Letter;
- Anti-Bribery and Corruption Policy attached as Appendix III to the Engagement Letter;
- Anti-Money Laundering and Trade Sanctions Policy attached as Appendix IV to the Engagement Letter; and
- Data Protection Policy attached as Appendix V to the Engagement Letter.

With regard to Anti-Money Laundering and Trade Sanctions Policy (Appendix IV), in section VI, all references of non-Indian laws, regulations, sanctions list and standards in the Appendix IV shall be replaced with reference to applicable Indian laws, regulations, sanctions list as notified by Government of India,- and where no such laws, regulations and standards exist, such reference shall be void. In case of any inconsistency between Client Policies and these General Terms, these General Terms shall prevail."

9.2. SEBI (Prohibition of Insider Trading) Regulations 2015 ('SEBI Regulations') are applicable to us and we are required to deal with any Unpublished Price Sensitive Information ('UPSI') in accordance with the SEBI Regulations. For this purpose, we request you to provide us necessary details as mentioned in clause 7 of the General Terms of Business, to the extent applicable.

9.3. Code of Conduct: Based on our discussions, it has been mutually agreed between the parties that KPMG's engagement team shall only comply with the Client policies listed below ("Policies") to the extent it is applicable to KPMG as a service provider under the Engagement Letter. KPMG agrees to have its engagement team comply with below listed Client Policies:

- a) Code of Business Conduct and Ethics attached as Appendix II;
- b) Anti-Bribery and Corruption Policy attached as Appendix III;
- c) Anti-Money Laundering and Trade Sanctions Policy attached as Appendix IV; and
- d) Data Protection Policy attached as Appendix V.

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With regard to Anti-Money Laundering and Trade Sanctions Policy (Appendix IV), in section VI, all references of non-Indian laws, regulations, sanctions list and standards in the Appendix IV shall be replaced with reference to applicable Indian laws, regulations, sanctions list as notified by Government of India, and where no such laws, regulations and standards exist, such reference shall be void. In case of any inconsistency between the Policies and the Engagement Letter, the Engagement Letter shall prevail.

9.4. **Manner of communication (public domain emails; WhatsApp; etc.)** : Where we are requested to communicate with you and/or with your representatives, including their delegates (collectively referred to as 'Your Representatives') using your/ their respective public domain email accounts, telephone numbers and other electronic methods, including through third party cloud or messaging applications such as Google Drive, Dropbox, WhatsApp or Telegram, etc., (collectively referred to as 'Personal Accounts'), as provided to us by you and/or Your Representatives, the following shall apply:

- The list of Your Representatives shall be communicated to us in writing, and we shall be authorized to communicate with such Representatives subject to the same terms as provided in this Agreement and shall be deemed to be in compliance with the confidentiality /contractual obligations under this Agreement.
- You accept the inherent risks associated with usage of such Personal Accounts, as our enterprise level security and monitoring processes may not be able to prevent any security risks, including, without limitation, data leakage, copying, forwarding, interception or unauthorized access to such communication, the risks of corruption/viruses.
- You accept and confirm that KPMG shall not be responsible for any claims / losses/ damages, etc., as a result of communicating through such Personal Accounts.

9.5. As a Processor, KPMG may not engage another Processor to act as a Sub-processor hereunder without the prior written authorisation of Company as a Controller.

9.6. You understand that ACME Cleantech Solutions Private Limited is an existing client of the firm. You do not perceive conflict to the firm's division performing this engagement notwithstanding the firm's ongoing relationship with ACME Cleantech Solutions Private Limited.

9.7. On termination of this Agreement (or as otherwise instructed by the Company in writing), KPMG will delete, put beyond reasonable use, or return the Personal Data to the Company as instructed and any copies thereof unless KPMG is required by applicable law or its data retention policy to retain such Personal Data (in which case such Personal Data shall only be retained for the maximum period required by applicable law or such data retention policy).

9.8. Closure-letter issued by us should be accepted by you within 15-days of being presented.

10. Confirmation

10.1. We shall be grateful if you will kindly acknowledge your agreement with the terms and conditions of this EL and its attachment by signing one copy of this letter and affixing your company seal in the space provided below and returning it to us.

10.2. If this EL were not to be in accordance with your understanding of our agreement, then we shall be pleased to receive your observations and provide you with information as you may require.

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Kind regards

Yours sincerely



Full Signature _____

Shivananda Shetty

Partner, Head of Function (HoF), ESG

KPMG Assurance and Consulting Services LLP

I have read this letter and its attachment and confirm agreement with its terms.

Full Signature _____

Company seal

Date: 18.02.2026.

duly authorised for and on behalf of Brookfield Private Capital (DIFC) Limited



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Appendix 1 General Terms of Business

1. Definitions

"Additional Terms" means any other terms applicable to the Services included with or referenced in the Engagement Letter and these General Terms.

"Agreement" (or **"Services Contract"**) means the contract formed by the Engagement Letter, these General Terms, and any Additional Terms.

"Affiliate(s)" means any legal entity that, directly or indirectly, controls, is controlled by, or is under common control with you.

"Charges" means the fees, expenses and applicable taxes payable for the Services as mentioned in the Engagement Letter.

"Confidential Information" means any information that has been or will be made available, directly or indirectly, by one Party to the other Party in connection with the Services, that is marked or communicated as confidential or whose nature is such that a recipient would reasonably consider it confidential, including, without limitation, business plans, proposals, product development details, methodologies, software code and specifications, and financial information. Confidential Information excludes Excluded Information.

"Deliverable" means any advice, report or other product of the Services provided to you in any form pursuant to the Engagement Letter.

"Engagement Letter" means the letter sent to you referencing these General Terms of Business.

"Engagement Team" means KPMG Persons who are individuals delivering the Services.

"Excluded Information" means information that: (i) is or becomes generally available in the public domain through no fault of either the receiving Party or those to whom the receiving Party has disclosed the Confidential Information; or (ii) becomes available to the receiving Party free of any obligation of confidence from a third party who to the reasonable belief of the receiving Party is entitled to make such disclosure; or (iii) was developed by the receiving Party independently of the disclosing Party's Confidential Information.

"General Terms" means these terms and conditions.

"IPRs" means all intellectual property rights including all rights in and to inventions, utility models, patents, copyright and related rights, trade marks, logos, trade and business names, rights in designs, rights in computer software, database rights, moral rights, rights in Confidential Information (including knowhow and trade secrets), in every case whether registered or unregistered and all similar or equivalent rights or forms of protection (whether now or in the future) in any part of the world and references to "IPR" means any of them.

"KPMG" or **"we"** (and derivatives) means KPMG contracting party as identified by the Engagement Letter.

"KPMG Persons" means KPMG, and each and all of our partners, directors, members, employees and agents together with KPMG International Limited and other KPMG International entities and other member firms of KPMG global organization of independent firms affiliated with KPMG International Limited a private English company limited by guarantee (each a **"Member Firm"**) and any entity associated with us or a Member Firm, and each and all of its personnel including partners, directors, employees and agents, and **"KPMG Person"** means any one of them.

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"Other Beneficiaries" means any Person identified in the Engagement Letter as a beneficiary or an Affiliate which is a beneficiary of the Services or of any Deliverable other than you.

"Other KPMG Person(s)" means KPMG Persons who are not members of the Engagement Team.

"Party" means either of KPMG and you and **"Parties"** shall mean both KPMG and you.

"Person" means individuals, corporate and unincorporated bodies.

"Services" means the services to be delivered by us under the Engagement Letter.

"Unpublished Price Sensitive Information" or **"UPSI"** means any information, relating to a company or its securities, directly or indirectly, that is not generally available, which upon becoming generally available is likely to materially affect the price of the securities and shall, ordinarily include, but not be restricted to, information relating to the following:

- (i) financial results;
- (ii) dividends;
- (iii) change in capital structure;
- (iv) mergers, de-mergers, acquisitions, delistings, disposals and expansion of business and such other transactions;
- (v) changes in key managerial personnel.

"you" or "Client" (and derivatives) means the addressee(s) of the Engagement Letter and, if the context requires, Other Beneficiaries.

2. The Agreement

2.1 This Agreement sets out the entire agreement between the Parties in connection with the Services and supersedes all previous agreements, promises, representations and understandings between the Parties, whether written or oral, to the extent only that

they relate to its subject matter. Where any purchase order/work order ('PO') is issued in connection with the Services, it is hereby mutually agreed between the Parties that no pre-printed terms contained or referred in the PO will be applicable and the Services shall be solely governed by the terms and conditions under the Agreement.

2.2 In entering into this Agreement, neither Party has relied on any statement, representation, assurance or warranty (made innocently or negligently) unless it is set out in this Agreement.

2.3 If there is any inconsistency between the Engagement Letter and any other part of this Agreement, the Engagement Letter prevails to the extent necessary to resolve the inconsistency. If there is any inconsistency between these General Terms and any Additional Terms, the Additional Terms prevail to the extent necessary to resolve the inconsistency.

2.4 Any changes to this Agreement must reference this Agreement, be in writing and signed by all Parties.

2.5 If any provision of the Agreement is found by a court of competent jurisdiction to be invalid, unenforceable or illegal in whole or in part for any reason such decision shall not affect the validity, enforceability or legality of the remaining provisions hereof and the Agreement will be construed as if such invalid, illegal or unenforceable provision was not a part of the Agreement.

3. Our responsibilities

3.1 The Services shall be delivered with the reasonable skill and care expected from a skilled and experienced Person engaged in providing services similar to the Services, in a similar context, and in compliance with applicable laws. We do not render legal services and, therefore, none of the Services rendered under the Engagement Letter or any part thereof shall be deemed to be legal services.

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3.2 The Services will be provided by an Engagement Team, including any individuals named in the Engagement Letter. We try to minimise team changes, but, where necessary, we may change team members for others of equivalent skills and we shall try to give you reasonable notice of any changes.

3.3 When we work at your premises, we shall comply with applicable site policies communicated to us and agreed in writing and such policies shall be considered as a part of this Agreement.

4. Your responsibilities

4.1 You shall provide (and procure that your personnel and representatives provide), in a timely manner, such cooperation, information, documents and access to personnel, premises, systems and facilities, as we reasonably need or request and you shall obtain all necessary licences and permissions. You shall provide a safe and appropriate working environment and perform any actions that are to be performed by you under this Agreement.

4.2 You shall inform us of any changed circumstances or information that may have an impact on the Services and shall ensure that the personnel with whom we deal have the required skills, knowledge and information.

4.3 You are responsible and accountable for managing your affairs, deciding on what to do after receiving any Deliverable and implementing any advice or recommendations.

4.4 You are responsible for making any notifications, registrations and disclosures required of you under any law, rule or regulation.

4.5 We may communicate with you by electronic mail on the basis that in consenting to this method of communication you understand and accept the inherent risks with respect to such mode of communication and you shall perform virus checks as applicable. We may, to the extent permitted by law, intercept such communications in order to monitor

them for internal compliance or other statutory purposes. You shall be responsible for security and confidentiality of any electronic storage facility, where you request us to send documents pursuant to this Agreement.

4.6 You shall not, directly or indirectly, solicit the employment of any of our partners, members, directors or employees, as the case may be, involved in performing the Services while the Services are being performed or for a period of 3 months following their completion or following termination of the Agreement, without our prior written consent. This prohibition shall not prevent you at any time from running recruitment advertising campaigns nor from offering employment to any of our partners, members, directors or employees, as the case may be, who may respond to any such campaign.

5. Ownership

5.1 We own all IPRs in any Deliverable, except to the extent that the Deliverable incorporate your or third party pre-existing IPR which you or they shall continue to own. We shall retain ownership of our working papers.

5.2 You own any Deliverable in its tangible form on payment in full of our Charges and shall use the Deliverable subject to the terms of this Agreement.

6. Our advice and use of information

6.1 We may provide advice orally, in draft or interim form, but our latest written advice or final written report supersedes anything provided earlier.

6.2 You should not rely on any draft or interim advice. If we give you oral advice, and you wish to rely on it, you shall inform us and we will provide it in writing. You should only rely on our written advice.

6.3 We may rely on any instructions, requests or information supplied by any Person whom we

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reasonably believe to be authorised by you for such purpose.

6.4 If we receive information from you or from other sources in connection with the Services, we will rely upon it without independent verification.

6.5 Unless a part of the Services, we will not update the Services or the Deliverable after we have delivered the final Deliverable.

6.6 We cannot predict future events or circumstances, and you should not interpret our advice, forecasts or recommendations as a prediction or guarantee of any outcome.

6.7 Unless otherwise agreed, our Services and Deliverable are provided for your internal use only and on the basis that you shall not quote our name or reproduce our logo in any form or medium without our prior written consent. The Deliverable shall not be disclosed to any other Person without our prior written consent except as permitted under the Agreement or except as required by law or by a competent regulatory authority (in which case you shall, if permitted by law or regulation, promptly inform us in writing). You may disclose the Deliverable to your Affiliate(s) who shall then be considered as Other Beneficiaries.

6.8 You may disclose the Deliverable to your legal and other professional advisers if seeking advice in relation to the Services, provided that you inform them that: (i) the Deliverable shall be kept confidential; and (ii) to the fullest extent permitted by law, we accept no liability to them in connection with the Services or the Deliverable.

6.9 **Consent to record meetings:** Any use of virtual meeting platforms such as Zoom, Google Meet, WebEx, MS Team or any other similar platform for the performance of scope of work/Services under the Engagement Letter shall be subject to the following conditions:

a) Where the Client or any Person on behalf of the Client (together referred to as "Client" for the purpose of this clause) wishes to record the proceedings in whole or in part during any audio and/or video meetings, (together 'Meetings'), it shall be required to provide an explicit written notice to all the attendee(s) of the call who would be representing us or participating on our behalf, prior to the Meeting. It is hereby agreed between the Parties that the recording of the Meeting shall not be permitted unless such consent has been granted in writing prior to the Meeting and mere participation in the Meeting shall not be considered as a consent.

b) Without prejudice to our rights under law and/or contract or otherwise, we shall be entitled to withdraw from the Meeting which is being recorded without our explicit consent.

c) Any such consent, if granted, shall be valid only for that particular Meeting and for the agenda / purpose for which the Meeting is conducted.

d) No reliance shall be placed by the Client on the views expressed or advice provided or recommendations made by us during any such Meetings, whether recorded or not. Consequently, we and KPMG Persons shall not incur any liability to the Client or any other third party arising out of or relating to such recordings.

e) If the Client wishes to rely on any advice provided by us during such Meetings, Client is required to inform us about such requirement and we shall provide the same in writing. Client should only rely on our written advice at all times.

f) Any consent granted by us shall be considered as revocable and we shall be entitled to withdraw our consent at any time (i.e. before, during or after the Meeting). In case of such revocation during the meeting, the Client undertakes to stop the recording immediately and in any case during or after the Meeting, delete all copies of such recording permanently from its system (including archival systems).

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g) Client acknowledges that such recordings, shall be used solely for internal purposes of the Client and cannot be used or relied upon in any other manner whatsoever or disclosed to any other party, and shall ensure the confidentiality of the same in accordance with this clause.

h) Client agrees that such recording shall be without prejudice and that it shall not be entitled to alter, use or rely upon the recording in any manner whatsoever including without limitation in case of any dispute/differences between us and the Client. In no case shall such recording be used against us or our any KPMG Persons in any litigation or regulatory enquiries in any manner whatsoever.

i) Once the recording is done, the Client is obligated to immediately furnish to us an unaltered copy of such recordings, for our records. Client shall permanently delete any recording when such recording is no longer required.

j) Any content presented by us in the Meetings should not be copied in any manner through screen shots or otherwise, without our prior and explicit written consent.

k) Any consent obtained, in a manner other than provided in this clause, will be treated as null and void.

7. Confidentiality

7.1 The Parties shall keep each other's Confidential Information confidential and use it only to perform or receive the Services or for exercising their rights or performing their obligations under this Agreement. We shall not disclose your Confidential Information beyond KPMG Persons or subcontractors who are involved in delivery of Services unless permitted by you or by this clause. Each Party will protect the Confidential Information it receives as it would protect its Confidential Information, and exercise at least a reasonable standard of care.

7.2 The Parties may disclose Confidential Information if required by applicable law or regulation but only to the extent required by such law or regulation. The

Parties may disclose Confidential Information to their insurers in relation to any dispute relating to this Agreement, in which event such disclosure shall be done privately and in confidence only.

7.3 Subject to our confidentiality obligations herein, we will retain engagement documentation to support the work performed by us, for a period as required by our document retention policy. We shall be entitled to use your Confidential

Information and to provide such information to

- (i) KPMG Persons and/or their external legal advisers
- (ii) other parties who facilitate the administration of our business or support our infrastructure

in both cases in order to

- (a) perform client and engagement acceptance procedures (including but not limited to the identification of potential conflicts of interest or compliance with independence requirements),
- (b) perform internal risk assessments and
- (c) support the maintenance of quality and professional standards in the conduct and delivery of services (e.g., quality reviews of the services delivered, to identify and mitigate any KPMG quality, conduct or related risk management issues, facilitate requests by regulators, or the establishment and maintenance of knowledge databases).

We are still responsible for ensuring confidentiality if Confidential Information is shared with or accessed by such parties.

7.4 We may use information we obtain in performing the Services, anonymised and/or aggregated, so that no Personal Data or commercially sensitive information is disclosed, for development of expertise and know-how, benchmarking, analytics, quality assurance and other purposes related to our business.

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7.5 Except as required by law or as set forth in this paragraph, neither Party shall acquire any right hereunder to use the name or logo of the other Party or any part thereof, without the express written consent of the other Party.

7.6 This clause is applicable if we will be provided with information of a listed/proposed to be listed company in India for performing our Services. You shall inform us in writing, in advance, the name(s) of such company / companies and the PAN or other identifier of first-time provider of information to us, as required pursuant to the SEBI (Prohibition of Insider Trading) Regulations, 2015 ('Regulations') and shall comply with the provisions of the Regulations. You agree that we shall not be responsible for determining the difference between UPSI and non-UPSI that would form part of the information disclosed to us. All information supplied to us would be used for the purpose for which it has been provided and such legitimate business purpose, as required.

8. Our Charges

8.1 We shall invoice you as per the Engagement Letter for the Charges which shall be payable on presentation of our invoice (or at such other time as may be specified in the Engagement Letter) without set-off.

8.2 Upon termination of the Agreement, we shall be entitled to payment of our Charges for Services performed up to the date of termination. In this event, our Charges will be calculated at our agreed hourly rates (or if none are agreed then our relevant standard rates) at the time the Services were performed.

8.3 Where there is more than one addressee of the Engagement Letter, unless the Engagement Letter

provides otherwise, each of you shall be jointly and severally liable to pay our Charges.

8.4 If we are required by law or any authority (whether investigative, regulatory, tax or otherwise) to participate in any proceeding or investigation related to the Services, you shall compensate us for the time spent based on our standard rates at that time as also for any costs and expenses incurred, including legal costs and applicable taxes, arising out of or relating to such proceeding or investigation.

9. Managing conflicts of interest

9.1 KPMG Persons may be delivering services to, or approached to deliver services to, or act for another party or parties during and after this engagement with interests that conflict with or are adverse to yours (a "Conflicting Party" or "Conflicting Parties").

9.2 KPMG Persons are free to deliver services to Conflicting Parties, but where the interests of any Conflicting Party directly conflict with yours in relation to the subject matter of the Services then the Engagement Team shall not deliver services to the Conflicting Party and Other KPMG Persons may only deliver services to the Conflicting Party where appropriate Barriers are in place. Where this process is followed and such Barriers are in place, you agree that this will be sufficient to manage such conflict.

9.3 "Barriers" means reasonable safeguards to facilitate the protection of our clients' interests, through information handling procedures and deployment of professionals.

10. Third parties and their rights

10.1 KPMG Persons (other than the KPMG contracting Party) may exercise rights given to them in this Agreement.

10.2 The Parties may end or vary this Agreement in writing without anyone else's consent, including any Other

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Beneficiaries' consent.

10.3 You agree to and accept the provisions of the Agreement on your own behalf and as agent for Other Beneficiaries. Other Beneficiaries (if any) acquire rights and become subject to obligations under this Agreement as if they had each signed a copy of the Engagement Letter and agreed to be bound by it.

10.4 Except as provided herein, the Agreement shall not create or give rise to, nor shall it be intended to create or give rise to, any third party rights. No third party shall have any right to enforce or rely on any provision of the Agreement which does or may confer any right or benefit on any third party, directly or indirectly, expressly or impliedly.

11. Circumstances beyond your or our control

11.1 No Party shall be in breach of its obligations under this Agreement or incur liability to the other Party if that Party is unable to comply with this Agreement due to any cause beyond their reasonable control.

11.2 If such an event occurs, the affected Party shall, as soon as reasonably practical, notify the other Party, who may suspend or terminate this Agreement by giving seven days' notice, taking effect if the affected Party has not recommenced the performance of its obligations in that period.

12. Waiver, assignment and sub-contractors

12.1 Failure by a Party to exercise or enforce any rights under this Agreement is not a waiver of such rights.

12.2 No Party shall assign the benefit of this Agreement without the prior written consent of the other Party.

12.3 We may appoint sub-contractors to assist in delivering the Services, but we remain responsible for performing the Services and we shall procure that they treat your Confidential Information under confidentiality obligations equivalent to those in this

Agreement. Where any sub-contractor is not a KPMG Person we will notify you first.

13. Limitations on our liability

13.1 Our liability and that of any KPMG Person, in aggregate, to you and to Other Beneficiaries for all losses or damages under this Agreement and for all claims connected to it, in contract, tort (including negligence), statutory liability or otherwise, shall be limited to the fees paid to us for the Services in last twelve (12) months preceding the claim. Nothing in this Agreement limits our liability for direct losses or damages arising from our fraud or deliberate breach of duty or any other liability which cannot be limited by law.

13.2 In no event shall we (including KPMG Persons) be liable for loss of profits, goodwill, anticipated savings or wasted time and for indirect, special, incidental, exemplary, punitive or consequential loss, claims, costs, expenses or damages.

13.3 Where there is more than one beneficiary of the Services (a "**Beneficiary**") the limitation on our liability in clause 13.1 shall be apportioned by the Beneficiaries amongst them. No Beneficiary shall dispute or challenge the validity or operation of clause 13.1 on the grounds that no apportionment has been agreed or that the share of the limitation amount apportioned to any Beneficiary is unreasonably low. In this clause, "Beneficiary" includes you and Other Beneficiaries.

13.4 Neither you nor any Other Beneficiaries shall bring any claim against any KPMG Person except KPMG in respect of loss or damage suffered by you arising out of or in connection with this Agreement or the Services. This clause is enforceable by any KPMG Person.

13.5 Any claim from you or Other Beneficiaries in respect of loss or damage suffered as a result of, arising from or in connection with the Agreement must be made within three years from the date of cause of action arising. It is agreed between the Parties that the cause of action shall be deemed to arise on the date on which the activity giving rise to the claim was

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performed. For the purposes of this clause, a claim shall be made when court or other dispute resolution proceedings are commenced.

14. Third Party Claims

14.1 You shall indemnify and hold us harmless from time to time and at all times hereafter, from and against all losses, damages, costs, charges and expenses, harm or injury suffered or incurred by us or any of us arising out of any third party notices, claims, demands, action, suits or proceedings given, made or initiated against us on account of or in relation to (a) the performance, by us or any of us, of all or any of our obligations hereunder or (b) any transaction contemplated under the Engagement Letter (provided that the indemnity under (a) and (b) shall not, however, be applicable to the extent that any such notices, claims, demands, actions, suits or proceedings are found by a competent court in its final judgement to have resulted primarily from our wilful default in performing the Services described in the Engagement Letter) or (c) any default committed by you in the performance of all or any of your obligations hereunder or (d) providing a copy of our Deliverable to a third party as agreed by us under the Engagement Letter or in writing otherwise.

14.2 If any payment is made by you under this clause you shall not seek recovery of that payment from us at any time.

14.3 In this clause "us" shall include KPMG Persons and "you" shall include Other Beneficiaries.

15. Termination and Survival

15.1 Either you or we can terminate this Agreement by giving at least 30 days' prior notice to the other Party at any time.

15.2 We will terminate this Agreement immediately if:
(i) there is a change of law, rule, regulation or professional standard, or circumstances arise that we reasonably believe would cause the relationship

between the Parties to violate such law, rule, regulation or professional standard or would prejudice any KPMG Person's ability to comply with applicable independence requirements; or (ii) we believe a conflict of interest cannot be managed, but in that case we shall consult you before we do so; or (iii) in our view, we are unable to perform or continue to perform Services for any reason, including but not limited to, non-provision of the data or documents required by us on a timely basis or in case there is more than one addressee to the Engagement Letter, any disagreement between the addressees on the data to be furnished to us or any other dispute between such addressees.

15.3 Termination shall not affect any rights of any Party accrued before termination. Clauses 1, 4, 5, 6, 7, 8, 9, 10, 12, 13, 14, 15.3, 16, 17, 18, 19 and 20 shall survive expiry or termination of this Agreement, together with any other provision which, by implication, is intended to survive.

16. Data Protection

16.1 This clause 16 applies to personal data provided to us by you or on your behalf in connection with the Services ("**Personal Data**").

16.2 You warrant and represent that you have necessary consent, have provided any necessary notice and have complied with provisions/actionable required under applicable data protection laws to disclose Personal Data to us in connection with the Services.

16.3 We will take appropriate technical and organisational steps to protect against unauthorised or unlawful processing of Personal Data and accidental loss or destruction of, or damage to, Personal Data.

16.4 We shall process the Personal Data as reasonably required (i) to provide the Services; (ii) for our reasonable business purposes including facilitation and support of our business and quality control; and (iii) to meet our legal and regulatory obligations. We may

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share Personal Data with KPMG Persons, our subcontractors or other parties who facilitate or support our business. We will only make such a disclosure where it is required in connection with such purposes and in compliance with applicable data protection laws.

16.5 With respect to Personal Data received under the Agreement, we shall notify you promptly: (i) upon receiving a request for Personal Data or other request from a data subject, or if we receive any claim, complaint or allegation relating to the processing of the Personal Data; (ii) upon becoming aware of any breach of security leading to the destruction, loss or unlawful disclosure of the Personal Data in our possession or control.

16.6 You shall inform us if you disclose any Personal Data that is subject to and governed by the General Data Protection Regulation (EU 2016/679) ("**EU Personal Data**"). Upon notice from you under this sub-clause, the Parties shall enter into a mutually agreed data protection exhibit governing the processing of such EU Personal Data which shall form part of these General Terms.

17. Notices

17.1 Any notice under this Agreement shall be in writing which includes email, except as set out in this clause. Any notice alleging breach or terminating this Agreement must be delivered by registered post (or overseas equivalent) to or left (and signed for) at our respective addresses in the Engagement Letter (or such other address as may be notified in writing) addressed to the authorised persons of the relevant

Party named in the Engagement Letter and copied to the Parties' respective General Counsel.

18. Legal and regulatory compliance

18.1 Notwithstanding any other provision in this Agreement, each Party agrees that the other may make any notifications, registrations and disclosures required by applicable law or regulation and this may include disclosures or registrations relating to money laundering, tax requirements, and criminal or regulatory investigations.

18.2 To the best of its knowledge and information available, each Party represents, warrants and covenants that as on the date of the Engagement Letter, each Party is in compliance with and has not violated applicable laws and regulations relating to anti-corruption and anti-bribery ("**Anti-Corruption Laws**") and agrees and undertakes that it shall not violate AntiCorruption Laws, including through any of its employees, officers, affiliates, agents, subcontractors, or any other third party acting on its behalf.

19. Law and jurisdiction

19.1 This Agreement and all disputes arising on any basis from, under or in connection to it shall be governed exclusively by Indian law and subject to the exclusive jurisdiction of the courts in New Delhi, India.

20. Feedback on our performance

20.1 To help us improve our service, we may send you a feedback request. Your feedback will be seen by the Engagement Team Partner and the account Lead Partner.

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